

entitlement to such relief) ruled on the merits of the challenge to the administrative determination [citations omitted], and issued the writ or denied the petition." (*Id.* at 1467 [emphasis added].)

The existence of the Resolution No. 26-01 shows that Planning Commission review of his condominium conversion application occurred, and a Notice of Action with appeal information was issued. (Def. RJN Exhs. 12, 13.) The declaratory relief cause of action under the authorities cited above is not the appropriate means to review an administrative decision, i.e., the merits of the Planning Commission determination in Resolution 26-01 and Notice of Action. To the extent the declaratory relief cause of action seeks a declaration of Plaintiff's rights founded on the other four causes of action, including that he is entitled to have his condominium conversion approved with only the conditions to which he does not object, including in spite of the RMC provisions barring a two-unit conversion, then the declaratory relief cause of action is legally deficient for the same reasons those claims fail to state causes of action

The demurrer to the declaratory relief cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

Conclusion and Ruling

The Court **SUSTAINS, WITHOUT LEAVE TO AMEND**, Defendants' demurrer to the 2AC in its entirety and to each cause of action. Having given Plaintiff multiple opportunities to attempt to allege legally viable claims against the City, the Court finds no basis to grant Plaintiff any further attempt to amend.

9. 9:00 AM CASE NUMBER: C25-02761
CASE NAME: INGRID MARROQUIN VS. CHINA WALL BUFFET INC.,
LEAVE TO FILE CROSS-COMPLAINT
FILED BY: KUMAR, TARA
TENTATIVE RULING:

Defendant Tara Kumar ("Defendant") filed a Motion for Leave to File Cross-Complaint on May 7, 2026 (the "Motion for Leave to File"). The Motion for Leave to File was initially set for hearing on September 28, 2026.

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to File has been **CONTINUED** to December 28, 2026 by the Court's case management orders issued September 11, 2026.
2. The moving party to serve an amended notice of motion.

10. 9:00 AM CASE NUMBER: C25-03490
CASE NAME: HERLING MARTINEZ VS. WILLIAM KATAKIS
TRANSFER AND CONSOLIDATE
FILED BY: MARTINEZ, HERLING MILENA
TENTATIVE RULING:

Plaintiff, Herling Milena Martinez, seeks to transfer a separate case to this Court for consolidation with the instant action. The motion is **DENIED without prejudice**, as discussed below.

Background

Plaintiff was living with, and in a romantic relationship with, defendant William J. Katakis for 16 years. In the present action, plaintiff sues over a number of allegations that detail physical, emotional, verbal, and financial abuse.

Plaintiff alleges she was a practicing dentist in Costa Rica and was on track to become licensed to practice in California, but at defendant's urging, she gave up her career to care for the couple's child. Plaintiff alleges defendant had a notary come to their house and that he informed plaintiff she was signing a marriage license and to keep it a secret until after they had a wedding ceremony, but that was false. (Complaint, ¶¶13-15.) Plaintiff alleges that she relied on various promises made by defendant to replace the income she would have earned as a dentist, to take care of her and share profits from various business dealings, etc., but that those promises went unfulfilled. Plaintiff and defendant lived primarily in Contra Costa County, but they purchased a home together in Truckee, taking title as joint tenants, in 2021.

The complaint alleges causes of action for (1) Equitable Partition (relating to their Alamo home), (2) Breach of Oral Contract, (3) Breach of Implied-in-Fact Contract, (4) Breach of Implied-in-Law Contract, (5) Promissory Estoppel, (6) Breach of Fiduciary Duty, (7) Unjust Enrichment, (8) Fraud and Deceit, (9) Constructive Fraud, (10) Negligent Misrepresentation, (11) Professional Negligence, (12) Constructive Trust, (13-14) Violation of California Business and Professions Code § 17200, and (15) Accounting.

A lawsuit for partition appears to have been filed by Mr. Katakis in Placer County, though aside from statements by counsel providing the case number (S-CV-0055101), plaintiff submits no evidence of that case, no evidence regarding who initiated it (references are to "plaintiff," not by name) and when it was filed. (Declaration of Charles S. Bronitsky in Support of Motion, hereinafter "Bronitsky Decl.," ¶2.)

Standard

Generally actions involving real property are to be filed in the county where the property is located. (Code Civ. Proc., § 392, subd. (a).) Still, a judge may transfer an action from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. (Code Civ. Proc., § 403.) As provided in section 404, these common questions need to also be "predominating and significant to the litigation." (Code Civ. Proc., §§ 404, § 404.1.)

Discussion

Plaintiff contends the actions share common questions of fact and law, but does little to explain. She asserts consolidation is appropriate "based on the nature of the parties' sixteen-year quasi-marital relationship." (Bronitsky Decl., ¶16.) As noted in the opposition, her